

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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TERRY DEGRAFINREID,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, P.O. PATRICK CAHILL, PAUL PALOMBO,
THE HERTZ CORPORATION, THRIFTY CAR RENTAL,
INC., and DTG OPERATIONS, INC.

Defendants,

Index No.:

Date purchased:

Plaintiff designates
QUEENS County
as the place of Trial.

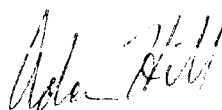
SUMMONS WITH NOTICE

The basis of the venue is
Place of Occurrence

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
June 29, 2018



Adam Hill, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
718-855-2324

Notice: The nature of this action: false arrest; false imprisonment; malicious prosecution; unlawful detention; violation of civil rights; negligence; personal injuries.
The relief sought is compensatory and exemplary damages; monetary damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from January 17, 2018 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No.:
TERRY DEGRAFINREID,

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, P.O. PATRICK CAHILL, PAUL PALOMBO,
THE HERTZ CORPORATION, THRIFTY CAR RENTAL,
INC., and DTG OPERATIONS, INC.

Defendants,

-----X

1. At all times hereinafter mentioned, plaintiff **TERRY DEGRAFINREID** was and still is a resident of the State of New York.

2. At all times hereinafter mentioned, defendant The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. The Police Department of the City of New York is an agency acting on behalf of The City of New York and engaged by The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.

4. That at all times hereinafter mentioned defendant The City of New York, its agents, servants and employees operated, maintained and controlled the Police Department including all the police officers thereof.

5. That at all times herein mentioned defendant, P.O. Patrick Cahill of the 106th Precinct, shield # 24600, was a police officer employed by the New York City Police Department and at all times herein mentioned was acting in the scope of his employment as a police officer.

6. That at all times hereinafter mentioned, defendant The Hertz Corporation was and still is a domestic corporation, organized and existing by virtue of and under the laws of the State of New York.

7. That at all times hereinafter mentioned, defendant The Hertz Corporation was and still is a foreign limited liability company authorized to do business in the State of New York.

8. That at all times hereinafter mentioned, defendant Thrifty Car Rental, Inc. was and still is a domestic corporation, organized and existing by virtue of and under the laws of the State of New York.

9. That at all times hereinafter mentioned, defendant Thrifty Car Rental, Inc. was and still is a foreign limited liability company authorized to do business in the State of New York.

10. That at all times hereinafter mentioned, defendant DTG Operations Inc. was and still is a domestic corporation, organized and existing by virtue of and under the laws of the State of New York.

11. That at all times hereinafter mentioned, defendant DTG Operations Inc. was and still is a foreign limited liability company authorized to do business in the State of New York.

12. That Thrifty Car Rental, Inc. is a subsidiary company of DTG Operations Inc.

13. That Thrifty Car Rental, Inc. is a subsidiary company of The Hertz Corporation.

14. That at all times hereinafter mentioned, Paul Palombo was an employee of The Hertz Corporation.

15. That at all times hereinafter mentioned, Paul Palombo was an employee of Thrifty Car Rental, Inc.

16. That at all times hereinafter mentioned, Paul Palombo was an employee of DTG Operations Inc.

17. That in January of 2018 Paul Palombo provided corporate security for The Hertz Corporation.

18. That in January of 2018 Paul Palombo provided corporate security for Thrifty Car Rental.

19. That on January 4, 2018, plaintiff rented a car from Thrifty Car Rental located at 318 Federal Cir, Jamaica, NY 11430.

20. That Thrifty Car Rental charged plaintiff's credit card \$658.35 for said car rental.

21. That said car was rented to plaintiff for the period of January 4, 2018 through January 18, 2018.

22. That on or before January 17, 2018, The Hertz Corporation negligently reported the rental car as stolen.

23. That on or before January 17, 2018, Thrifty Car Rental, Inc. negligently reported the rental car as stolen.

24. That on or before January 17, 2018, DTG Operations Inc. negligently reported the rental car as stolen.

25. That on or before January 17, 2018, Paul Palombo negligently reported the rental car as stolen.

26. That on January 17, 2018, at approximately 10:00 a.m. police officers unlawfully stopped, detained, and arrested plaintiff outside of the premises of 111-36 133rd

Street, Jamaica, NY 11420.

27. That police officers placed handcuffs on plaintiff immediately upon approaching plaintiff.

28. That at said time plaintiff was questioned about the rental car.

29. That at said time plaintiff showed police officers his car rental agreement contract.

30. That at said time plaintiff showed police officers his email confirmation for the car rental.

31. That at said time plaintiff showed police officers said charge to his visa bank account.

32. That despite showing them evidence of a valid car rental contract, plaintiff was transported to and imprisoned at the 106th Precinct.

33. That the police officers arrested and imprisoned plaintiff without reasonable or probable cause.

34. That the police officers acted intentionally, maliciously, wantonly and with deliberate disregard for plaintiff's interests.

35. That Paul Palombo acted intentionally, maliciously, wantonly and with deliberate disregard for plaintiff's interests.

36. That plaintiff was fingerprinted.

37. That plaintiff was photographed.

38. That plaintiff was never read his Miranda rights.

39. That plaintiff was questioned in a holding cell.

40. That plaintiff was transported to and imprisoned at Central Booking.

41. That the detainment and arrest constituted a false arrest.

42. That the detainment, arrest and imprisonment constituted a false imprisonment.

43. That plaintiff was released from Central Booking on January 17, 2018 at approximately 11:30 P.M.

44. That plaintiff was not arraigned.

45. That plaintiff was not prosecuted.

46. The incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiffs contributing thereto.

47. As a result of the foregoing, plaintiffs sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

48. As a result of the foregoing, plaintiffs sustained exemplary damages in an amount which exceeds the jurisdiction of any lower court.

49. That on March 9, 2018 Notice of Claim was made and served upon the defendants, said service occurring within 90 days of the incident giving rise to this law suit.

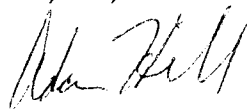
50. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

51. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

WHEREFORE, plaintiffs demand judgment against the defendants on all causes of action for compensatory and exemplary damages in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: Brooklyn, New York
June 29, 2018

Yours, etc.,

A handwritten signature in black ink, appearing to read "Adam Hill", written over a horizontal line.

Adam Hill, Esq. OF
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35TH Floor
Brooklyn, New York 11241
(718) 855-2324

STATE OF NEW YORK, COUNTY OF QUEENS) s.s.:

I, the undersigned, an attorney duly admitted to practice law in the Courts of this State, state that I am a an Associate in the firm of Ross and Hill, Esqs., attorneys of record for plaintiff(s) in this action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief and, as to those matters, I believe it to be true.

The reason this verification is made by me and not by the plaintiff is that plaintiff presently resides outside the County in which your affirmant maintains offices.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: consultation with plaintiff(s), investigative reports, memoranda and other data in the file concerning the subject matter of the within litigation.

I affirm the foregoing statements are true, under the penalty of perjury.

Dated: Brooklyn, New York
June 29, 2018



Adam Hill

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

TERRY DEGRAFINREID,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, P.O. PATRICK CAHILL,
PAUL PALOMBO, THE HERTZ CORPORATION, THRIFTY CAR RENTAL, INC., and
DTG OPERATIONS, INC.

Defendants,

SUMMONS & COMPLAINT

LAW OFFICES OF ROSS AND HILL, PLLC.

Attorneys for Plaintiff

Office and Post Office Address

16 Court Street, 35th Floor

Brooklyn, New York 11241

Tel (718) 855-2324

Fax (718) 855-4617

To:

Service of a copy of the within
is hereby admitted.

Dated:

Attorney(s) for
